

DRAGGING ITS FEET

Name of the Act	Intent of the Law	Date of Presidential Assent	Sections not Enforced Yet
The Special Economic Zones Act, 2005	To provide a legal framework for the setting up of SEZs	June 23, 2005	By setting aside Sections 23 and 24, the creation of a modern judicial substructure to dispense timely justice has been stopped.
The Disaster Management Act, 2005	Provides for the setting up of a National Disaster Management Authority	December 23, 2005	Non-enforcement of Section 46, which enables the meeting of expenses for rehabilitation in emergencies, has badly affected India's disaster preparedness.
The Petroleum and Natural Gas Regulatory Board Act, 2006	To provide for a regulator to oversee refining and marketing of petroleum products and CNG	March 31, 2006	Not implementing Section 16 has made the Board defunct and piped gas connection plans for all major towns have hit a roadblock.
The Food Safety and Standards Act, 2006	To consolidate laws pertaining to the food sector and establish a regulatory authority	August 23, 2006	Non-enforcement of crucial sections have ensured a free run for food adulterers, threatening public health.
The Code of Criminal Procedure (Amendment) Act, 2008	To safeguard the interests of the innocent with a view to protect their dignity and liberty	January 7, 2009	Sections 5, 6, 21(b) aimed at putting checks and balances on the police in order to curb abuse, torture and corruption at police stations.

Court ordered that since Section 16 of the PNGRB Act had not been notified by the Government, the board did not have the power to grant authorisation for city gas distribution and annulled gas licences for six cities—Kakinada in Andhra Pradesh, Mathura and Meerut in Uttar Pradesh, Kota in Rajasthan, Dewas in Madhya Pradesh and Sonapat in Haryana. The court also restrained the board from awarding licences for seven cities that included Allahabad, Ghaziabad and Jhansi in Uttar Pradesh, Shahdol in Madhya Pradesh, Rajahmundry and Yanam in

Andhra Pradesh and Chandigarh.

The Indraprastha Gas Ltd which had a pre-PNGRB authorisation for CNG operations in Ghaziabad had challenged the board's move in the Delhi High Court. The Government in its internal note says that "the existing text of the Act does not reflect the spirit of the statute", almost questioning Parliament's view on the issue. "In the absence of adequate scrutiny of the legislation while passing the bills, the Parliament is giving away more discretion and power to the executive. The MPs must

insist that any law that they pass must have a date specified by which it will come into effect. A good example of this is the Right to Information Act in which the law clearly specified that it will come into effect in 120 days from the date of passage of the law," says C.V. Madhukar, director, PRS Legislative Research.

Not very different is the case of amendments to the Criminal Procedure Codes passed by the government in 2008. This was seen as an effort to put checks and balances on police powers and aimed at stopping abuse, torture, corruption and extortion in police stations. The Act was a bold move to put accountability in place among the uniformed lot and prevent arbitrary arrests without evidence or investigation. Section 41 of the Act takes away the powers of the police to arrest in cases of alleged offences which carry a maximum sentence of up to seven years. The police will have to issue a "notice of appearance" for any offence punishable with imprisonment of up to seven years. The person can be arrested only if he does not appear before the police in response to the notice. It was a maiden attempt to sweep clean the neighbourhood police stations of corruption. The National Police Commission, referring to the quality of arrests made by the police in India had mentioned that "power of arrest was one of the chief sources of corruption in the police. Under IPC crimes, 27.8 lakh persons were arrested and 41 lakh were arrested under Special and Local Law crimes in 2007." According to the report, nearly 60 per cent of arrests were either unnecessary or unjustified and such unjustified police action accounted for 43 per cent of the expenditure of the prison department. While notifying the Act, Sections 5, 6, 21(b) were quietly put in cold storage due to heavy protests from lawyers who thought that the move would hurt their fraternity, a large chunk of who make a living from handling bail cases. The lawyers are planning an agitation against the section and the Delhi Bar Association even went a step further

“Members should make use of parliamentary forums to check this trend and seek clarifications from the respective ministries.”

RAHMAN KHAN, *Rajya Sabha Deputy Chairman*

